Mr Dubois

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Report No. 12

5 May 1947

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FLICK CASE - REPORT NO. 12

DAILY TRIAL REPORT - MILITARY TRIBUNAL NO. 4 - FLICK CASE.

EVIDENCE: Direct examination of the witness Lipold was completed by Mr. Stone. Dr. Siemers, Counsel for the defendant Weiss, cross-examined the witness. There was no further cross-examination. At the beginning of the afternoon session Mr. Ervin continued with the introduction of documents from Book V-B and completed the documents with reference to Harpener, Fellawerke and Linke-Hofmann. The Prosecution then called to the stand a Czech witness Emil Mauder who had worked as a slave laborer in the Spandau Plant in 1943.

LAW AND PROCEDURE: Dr. Dix questioned the relevance of several documents concerning the use of Russian prisoners of war at Linke-Hofmann on the grounds that the documents indicated that th PW's were engaged in building railway cars and that was permissibl use of prisoners of war within the Geneva Convention. The documents were received in evidence subject to the reservation of Dr. Dix to raise the legal argument at a later date.